

SOFTWARE AS A SERVICE TERMS OF SERVICE

WHEREAS, the Company operates a software-as-a-service platform and desires to grant access to users subject to the terms and conditions set forth herein;

WHEREAS, the User desires to access and use the Service in accordance with these Terms;

NOW, THEREFORE, in consideration of the mutual obligations set forth herein, the parties agree as follows:

1. DEFINITIONS

1.1 Service.

"Service" means the Company's proprietary software platform, including all related features, functionality, APIs, updates, and documentation made available by the Company.

1.2 User.

"User" means the individual or entity that accesses or uses the Service under these Terms.

1.3 Subscription Term.

"Subscription Term" means the period during which the User is authorized to access the Service as specified in the applicable Order Form or account dashboard.

2. LICENSE GRANT AND RESTRICTIONS

2.1 License.

Subject to the User's compliance with these Terms and timely payment of all applicable fees, the Company grants User a limited, non-exclusive, non-transferable, non-sublicensable, revocable license to access and use the Service solely for User's internal business purposes during the Subscription Term.

2.2 Restrictions.

User shall not: (a) reverse engineer, decompile, disassemble, or attempt to derive the source code of the Service; (b) copy, modify, or create derivative works of the Service; (c) rent, lease, lend, sell, sublicense, or transfer access to the Service to any third party; (d) use the Service to develop a competing product or service; or (e) use the Service to store or transmit unlawful, infringing, or tortious material.

2.3 Reservation of Rights.

The Company retains all right, title, and interest in and to the Service, including all intellectual property rights therein. No rights are granted to User except as expressly set forth herein.

3. PAYMENT AND BILLING

3.1 Fees.

User agrees to pay all fees specified in the applicable Order Form or pricing page. Fees are due in advance and are non-cancellable and non-refundable except as expressly provided herein.

3.2 Billing Cycle.

Subscriptions are billed on a monthly or annual basis, as selected by User. The Company reserves the right to change fees upon thirty (30) days prior written notice.

3.3 Taxes.

All fees are exclusive of taxes. User is responsible for all applicable sales, use, and other taxes, excluding taxes based on the Company's net income.

3.4 Suspension.

The Company may suspend User's access to the Service immediately upon written notice if any payment is more than fifteen (15) days overdue.

4. CONFIDENTIALITY AND DATA

4.1 User Data.

User retains ownership of all data, content, and information submitted to the Service ("User Data"). User grants the Company a limited license to use User Data solely to provide the Service.

4.2 Security.

The Company shall implement commercially reasonable technical and organizational measures to protect User Data from unauthorized access, disclosure, or destruction.

5. LIMITATION OF LIABILITY

5.1 Disclaimer.

THE SERVICE IS PROVIDED "AS IS" WITHOUT WARRANTIES OF ANY KIND, WHETHER EXPRESS, IMPLIED, STATUTORY, OR OTHERWISE, INCLUDING ANY IMPLIED WARRANTIES OF MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, OR NON-INFRINGEMENT.

5.2 Limitation.

TO THE MAXIMUM EXTENT PERMITTED BY APPLICABLE LAW, THE COMPANY'S TOTAL CUMULATIVE LIABILITY TO USER FOR ANY CLAIMS ARISING OUT OF OR RELATED TO THESE TERMS SHALL NOT EXCEED THE FEES PAID BY USER IN THE TWELVE (12) MONTHS PRECEDING THE CLAIM.

5.3 Exclusion.

IN NO EVENT SHALL THE COMPANY BE LIABLE FOR ANY INDIRECT, INCIDENTAL, SPECIAL, CONSEQUENTIAL, OR PUNITIVE DAMAGES, INCLUDING LOSS OF PROFITS,

DATA, BUSINESS, OR GOODWILL.

6. TERMINATION

6.1 By Either Party.

Either party may terminate these Terms for cause if the other party materially breaches these Terms and fails to cure such breach within thirty (30) days of written notice.

6.2 Effect of Termination.

Upon termination, User's access to the Service will cease immediately, and User shall promptly pay all outstanding fees. Provisions that by their nature should survive termination shall survive.

IN WITNESS WHEREOF

The parties hereto have executed this Agreement as of the Effective Date first written above. This Agreement may be executed in counterparts, each of which shall be deemed an original, and all of which together shall constitute one and the same instrument.

Company (Service Provider)

Signature: _____

Name: _____

Title: _____

Date: _____

User (Subscriber)

Signature: _____

Name: _____

Title: _____

Date: _____